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Case Number: 23TRCV01073 Hearing Date: September 8, 2026 Dept: P

Motion to Tax Costs

Moving Party: Plaintiffs Jeremiah Scott and Amanda Camacho

Responding Party: Defendant Mercedes-Benz USA, LLC

RULING

The court considered the moving papers, opposition, and reply. Plaintiffs' Motion to Tax Costs is DENIED.

PROCEDURAL BACKGROUND

On April 7, 2023, Plaintiffs Jeremiah Scott and Amanda Camacho (collectively, "Plaintiffs") filed a complaint against Defendant Mercedes-Benz USA, LLC ("MBUSA") and DOES 1 through 10, inclusive, alleging two causes of action for: (1) Violation of Song-Beverly Act – Breach of Express Warranty; and (2) Violation of the Song-Beverly Act Section 1793.2.

On March 20, 2026, the court ordered judgment to be entered for MBUSA, against Plaintiffs.

On April 3, 2026, MBUSA filed a memorandum of costs.

On April 17, 2026, Plaintiffs filed the instant motion. On August 25, 2026, MBUSA filed an opposition. On August 31, 2026, Plaintiffs filed a reply.

FACTUAL BACKGROUND

Plaintiffs allege that on April 29, 2022, they entered into a warranty contract with MBUSA regarding a 2019 Mercedes C300W (the "Subject Vehicle"). (Complaint, ¶ 14.) Plaintiffs allege that defects and nonconformities to warranty manifested during the applicable warranty period. (Complaint, ¶ 15.) Plaintiffs allege that they delivered the Subject Vehicle to an authorized MBUSA repair facility, but MBUSA was unable to conform the Subject Vehicle to the applicable warranty after a reasonable number of repair attempts. (Complaint, ¶¶ 17-18.)

LEGAL STANDARD

“Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding. This means that the prevailing party is entitled to all of his costs unless another statute provides otherwise. Absent such statutory authority, the court has no discretion to deny costs to the prevailing party.” (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 128-129 (citations and internal quotations omitted); see also Code of Civ. Proc. Section 1032(b).)

Allowable costs under Code of Civil Procedure Section 1033.5 must be reasonably necessary to the conduct of the litigation, rather than merely convenient or beneficial to its preparation, and must be reasonable in amount. An item not specifically allowable under Section 1033.5(a) nor prohibited under subdivision (b) may nevertheless be recoverable in the discretion of the court if they meet the above requirements (i.e., reasonably necessary and reasonable in amount). If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 773-774.) Whereas, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. (*Ibid.*) Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion. (*Ibid.*) However, because the right to costs is governed strictly by statute, a court has no discretion to award costs not statutorily authorized. (*Ibid.*)

DISCUSSION

Moving Party's Argument

Plaintiffs object to MBUSA's requests to recover \$256.10 in filing fees, \$1,000.00 in deposition charges, \$3,900.00 in expert fees, \$368.25 in exhibit charges, and \$751.80 in e-filing fees on the grounds that the costs are excessive, unreasonable, and/or not recoverable. Plaintiffs argue that the filing fees requested by MBUSA pertaining to a Motion to Compel Discovery, Motion to Quash, and Motion for Order are vague. Next, Plaintiffs challenge the deposition costs requested by MBUSA on the grounds that MBUSA has failed to attach receipts to enable Plaintiffs to identify whether there are additional unreasonable charges. Plaintiffs argue that the court should decline to exercise its discretion to award expert witness fees due to the parties' unequal footing, as Plaintiffs are average consumers and MBUSA has ample litigation resources, and because MBUSA has not explained why it was reasonable to hire external expert work here. Next, Plaintiffs argue that MBUSA has not provided receipts or an explanation as to why \$368.25 in exhibit-related costs were needed. Finally, Plaintiffs argue that the court should strike \$751.80 in e-filing costs because MBUSA has not explained why these costs were reasonably incurred.

Opposing Party's Argument

MBUSA argues that Plaintiffs' motion relies upon speculation, demands for receipts that were not required with MBUSA's cost memorandum, and policy arguments that run afoul of Code of Civil Procedure Sections 1032, 1033.5, and 998. MBUSA argues that each challenged category of costs is expressly recoverable and was reasonably necessary. MBUSA argues that Plaintiffs' motion should be denied because Plaintiffs have not identified any procedural defect supporting the striking of MBUSA's cost memorandum. MBUSA argues that it has identified each filing and its exact charge. Next, MBUSA argues that deposition costs, filing and motion fees are expressly recoverable pursuant to Code of Civil Procedure Section 1033.5, and MBUSA has itemized the exact cost for each deposition witness. MBUSA argues that the court should award it the reasonable post-offer expert fees pursuant to Code of Civil Procedure Section 998 because Plaintiffs declined to accept MBUSA's Section 998 offer and MBUSA obtained a complete defense verdict, and thus Section 998 authorizes the court to award MBUSA the reasonable expert fees incurred after the offer. MBUSA argues that the experts' work was reasonably necessary to evaluate the claims, conduct discovery, prepare trial issues, and present the defense. Next, MBUSA argues that Section 1033.5 allows models, enlargements, photocopies, and electronic presentation of exhibits when reasonably helpful to aid the trier of fact, and here, the display materials and color demonstratives were reasonably helpful to display evidence to the jury. MBUSA argues that Section 1033.5 allows fees for electronic filing, and here, MBUSA has identified each document and e-filing charge. Finally, MBUSA argues that the requested \$14,369.49 in costs is proportionate to this

case which involved multiple depositions, experts, extensive motion practice, mandatory e-filing, and a jury trial.

Reply Argument

Plaintiffs argue that MBUSA has failed to provide adequate justification for the impermissible costs it seeks. Plaintiffs reiterate their argument that MBUSA has failed to justify its request for filing fees pertaining to MBUSA's Motion to Compel Arbitration, Motion to Compel Discovery, Motion to Quash a trial subpoena, and Motion for Order. Plaintiffs also reiterate their arguments that MBUSA's request for deposition costs is unsubstantiated, in addition to MBUSA's request for exhibit-related costs. Plaintiffs reiterate their argument that MBUSA has not explained why it was reasonable to hire external experts, and MBUSA has not adequately justified its request for e-filing fees.

Merits of the Motion

A. Filing Fees

First, Plaintiffs seek to tax MBUSA's memorandum of costs by \$256.10 in filing fees because the amounts sought by MBUSA for filing a motion to compel discovery, motion to quash, and motion for order are vague.

Code of Civil Procedure Section 1033.5(a)(1) provides that filing fees are allowable as costs under Section 1032. (Code Civ. Proc. Section 1033.5(a)(1).)

The court has reviewed MBUSA's memorandum of costs and finds that MBUSA has provided itemized fees for each filing, and the court notes that filing fees are expressly recoverable under Code of Civil Procedure Section 1033.5. The court finds that MBUSA's Motion to Compel Discovery, Motion to Quash, and Motion for Order were reasonably necessary to the litigation and declines to strike these filing fees.

B. Deposition Costs

Next, Plaintiffs seek to tax MBUSA's memorandum of costs by \$1,000.00 in deposition costs because MBUSA has not attached receipts, and it is not clear why the deposition of Charles Shaw cost \$1,928.50 when each other deposition cost approximately \$1,000.00 or less.

Code of Civil Procedure Section 1033.5(a)(3)(A) provides that allowable costs under Section 1032 include "[t]aking, video recording, and transcribing necessary depositions, including an original and one copy of those taken by the claimant and one copy of depositions taken by the party against whom costs are allowed."

In opposition, MBUSA argues that Plaintiffs' proposed \$1,000.00 reduction is arbitrary, as deposition charges vary based on length, appearance time, transcript pages, exhibits, reporter fees, and services requested. MBUSA argues that Plaintiffs have not identified any specific expedited charge, rough transcript, or disallowed service on the invoice for the deposition of Charles Shaw. MBUSA further argues that each deposition was necessary because the expert testimony "concerned the repair history, causation, damages, vehicle condition, and defenses presented at trial." (Opp. 3:16-18.)

The court has reviewed Charles Shaw's invoice which shows that costs were incurred for the copy of Shaw's deposition, exhibits, the videoconferenced deposition, and delivery and handling. The court finds that the costs incurred by MBUSA to depose Charles Shaw were reasonably necessary to the litigation, and declines to tax MBUSA's memorandum of costs on this basis.

C. Expert Witness Fees

Plaintiffs request that the court strike MBUSA's requested \$3,900.00 in expert witness fees on the grounds that MBUSA has had greater access to litigation resources than Plaintiffs and MBUSA has not adequately justified its use of experts outside of MBUSA.

Code of Civil Procedure Section 998(c)(1) provides: "If an offer made by a defendant is not accepted and the plaintiff fails to obtain a more favorable judgment or award, the plaintiff shall not recover their postoffer costs and shall pay the defendant's costs from the time of offer. In addition, in any action or proceeding other than an eminent domain action, the court or arbitrator, in its discretion, may require the plaintiff to pay a reasonable sum to cover postoffer costs of the services of expert witnesses, who are not regular employees of any party, actually incurred and reasonably necessary in either, or both, preparation for trial or arbitration, or during trial or arbitration, of the case by the defendant."

Here, MBUSA's counsel declares that Plaintiffs rejected MBUSA's Section 998 offer, after which Plaintiffs obtained a complete defense verdict and zero recovery. (Gallagher Decl., ¶¶ 2-3.) Therefore, the court has discretion to order Plaintiffs to pay reasonable expert fees to MBUSA.

In opposition, MBUSA argues that the experts' work was "reasonably necessary to evaluate the claims, conduct discovery, prepare dispositive and trial issues, and present the defense." (Opp. 4:14-15.)

General arguments that an expert's fees are exorbitant or excessive are not sufficient to contest a memorandum of costs which appears to be proper on its face. (Adams v. Ford Motor Co. (2011) 199 Cal.App.4th 1475, 1487.) The court finds that Plaintiffs have failed to make a sufficient showing, outside of general argument, that MBUSA's expert fees are excessive and unreasonable. Therefore, the court declines to strike the expert witness fees from MBUSA's memorandum of costs.

D. Models and Enlargement Costs

Next, Plaintiffs move to strike \$368.25 claimed by MBUSA for exhibit-related costs including \$168.25 for color copies and \$384.33 for a foam board and tripod. Plaintiffs argue that the court should entirely strike the cost for color copies and reduce the costs for the foam board and tripod by \$200.00 on the grounds that MBUSA has failed to provide receipts or explain why the color copies were needed.

The cost of models, enlargements, photocopies, electronic presentations, and other similar costs are allowable if they were reasonably helpful to aid a trier of fact. (Code Civ. Proc. Section 1033.5(a)(13).) These costs are not recoverable if the materials were not presented to the trier of fact. (Segal v. ASICS America Corp. (2022) 12 Cal.5th 651, 665.) However, the court has discretion under Code of Civil Procedure Section 1033.5(c)(4) to allow the costs if they were reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation. (Id.)

In opposition, MBUSA argues that the exhibit preparation costs were reasonably helpful to organize and display evidence to the jury. MBUSA's counsel declares that the color copies, foam board, and tripod were "prepared for and used in presenting the repair history, timeline, warranty evidence, and technical issues to the jury." (Gallagher Decl., ¶ 5.)

Therefore, the court finds that the color copies, foam board, and tripod were actually presented to the jury and were reasonably helpful to aid the jury, and thus the court declines to strike these costs.

E. Electronic Filing Fees

Finally, Plaintiffs move to strike \$751.80 in electronic filing costs on the grounds that MBUSA has failed to provide a sufficient description for several vague charges, including costs for "Opposition," "Ex parte," "Order," eighteen motions in limine, "Reply," "Declaration," and a motion to compel arbitration, which was denied.

Pursuant to Code of Civil Procedure Section 1033.5(a)(14), a party may recover "[f]ees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents." (Code Civ. Proc. Section 1033.5(a)(14).)

Here, MBUSA contends that it has properly provided a line-by-line attachment identifying each document and charge and argues that whether a motion was denied does not render the cost of its required filing unrecoverable. MBUSA has provided copies of the receipts for the costs incurred for electronically filing MBUSA's eighteen motions in limine. (Gallagher Decl., Exh. C.)

MBUSA correctly notes that this court requires electronic filing. Further, the court finds that MBUSA's requested electronic filing or service fees of \$1,278.40 are reasonable on their face. Therefore, the court does not find that the electronic filing fees were unreasonably or unnecessarily incurred, and thus the court declines to reduce MBUSA's claimed electronic filing fees by \$751.80.

In sum, Plaintiffs' Motion to Tax Costs is DENIED in its entirety.

CONCLUSION

Based on the foregoing, Plaintiffs' Motion to Tax Costs is DENIED.

Moving party is ordered to give notice of ruling.